

7 .	2023- 1334802 McCorkle vs. La Habra Convalesce nt Hospital	Defendant La Habra Post Acute, LLC’s motion to compel further responses of Plaintiff Liza McCorkle to form interrogatories, set one, is denied. Defendant moves for an order compelling Plaintiff to provide a further response to form interrogatory no. 12.1, which requires Plaintiff to identify the witnesses to the “INCIDENT.” Defendant has not indicated that “INCIDENT” was specially or uniquely defined. Although Defendant contends that Plaintiff’s response was “not complete and straightforward,” given the many “circumstances and events” alleged in the Complaint, Plaintiff’s response was reasonable subject to her objection that the interrogatory was overly broad, vague and ambiguous. As explained in Rutter: “The term ‘INCIDENT’ may be ambiguous and confusing where the claim involved is based on multiple phone calls, letters, conversations, etc.” Thus, as a “practice pointer,” Rutter recommends using the option to “define ‘INCIDENT’ with a unique description.” Because it “may avoid the ambiguous and confusing objection.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶¶ 8:933.8-8:933.9.) That “pointer” is applicable, here. Defendant also complains that Plaintiff “does not properly identify any of the witnesses as no address or telephone number is provided in Plaintiff’s responses.” However, Plaintiff’s response stated that she was providing the information to “the best of [her] knowledge.” Plaintiff is not required to provide information she does not have—she is only required to answer “as the information reasonably available” permits. Accordingly, the motion shall be denied without prejudice to Defendant propounding this interrogatory with a narrower definition of “INCIDENT.” Defendant La Habra Post Acute, LLC’s motion to compel further responses of Plaintiff Liza McCorkle to special interrogatories, set one, is granted. Defendant moves for an order compelling Plaintiff to provide further responses to its special interrogatories, set one, nos. 1-6, 8-16, 18-33, 35-39, 42, and 44. The special interrogatories can be divided into two categories. Numbers 1, 3, 5, 11, 13, 15, 18, 20, 22, 24, 26, 28, 30, 32, 37, ask Plaintiff to “state all facts” to support contentions and allegations in the Complaint, i.e., “contention rogs.” While numbers 2, 4, 6, 8, 9, 10, 12, 14, 16, 19, 21, 23, 25, 27, 29, 31, 33, 35, 36, 38, 39, 42, and 44, ask Plaintiff to “IDENTIFY all PERSONS” she believes may have knowledge of those contentions/allegations. In response to the former category, Plaintiff responded with objections and a very long narrative (9 to 10 pages) that basically parrots the “General Allegations” in the
--------	--	--

		complaint. In response to the latter, Plaintiff appears to have identified all the same people at the facilities that she identified in response to form interrogatory no. 12.1. Neither one of these responses is appropriate because they are not drafted to respond to any particular special interrogatory, i.e., they are not “straightforward.” With respect to the first category (“state all facts”), even assuming an answer to a particular interrogatory can be found buried in the response, Defendant is not required to dig through the response to find which statements apply and which do not. The second category suffers from the same defect. While Plaintiff may find it time consuming to “breakdown” the omnibus list in response to each interrogatory, she has not shown it would be unduly burdensome to do so. Again, though, Plaintiff is not required to provide information she does not have—she is only required to answer “as the information reasonably available” permits. In connection with this motion, Defendant shall recover its attorneys’ fees and costs in the amount of \$2,562.50, against Plaintiff and her counsel of record, Moran Law, jointly and severally. The sanctions are payable within 30 days. Plaintiff’s further, verified responses to Defendant’s first set of special interrogatories, nos. 1-6, 8-16, 18-33, 35-39, 42, and 44, are due within 15 days of the notice of ruling. Defendant is ordered to give notice of the ruling.
8	2022-1285266 Chavarria vs. Motale	Defendant Micha Motale’s motion for an order vacating the default entered against him in this action on 8/5/24 is granted. Defendant’s motion is timely and complies with the requirements for relief under Code Civ. Proc. §473(b). It also shows ground for relief for “mistake, inadvertence, surprise or excusable neglect” under section 473(b). Though plaintiff’s counsel had been on contact with Defendant’s counsel to discuss possible resolution, he did not alert Defendant’s counsel that he was going to take Defendant’s default. [Bobroff Decl., ¶ 6.] A plaintiff’s counsel is required to notify the defendant’s counsel, if known, prior to taking the defendant’s default. According to our local COA, this is not merely an ethical duty but a statutory duty. <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 701–702 (reversing order denying relief from default); <i>Lasalle v. Vogel</i> (2019) 36 Cal.App.5th 127, 137 (reversing order denying relief from default).